

21STCV27246 21STCV27246

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Case Number: 21STCV27246 Hearing Date: August 3, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

GRAND VIEW REAL PROPERTY, LLC,

Plaintiff,

vs.

BENJAMIN JOON TAE KIM, et al.

Defendants.

Case No.:

21STCV27246

Hearing Date:

August 3, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] ORDER RE:

DEFENDANT MYUNG FAMILY TRUST'S DEMURRER TO
PLAINTIFF'S FAC

Background

On July 23, 2021, Plaintiff Grand View Real Property, LLC ("Grand View") filed a complaint in this action for "Temporary Restraining Order, Preliminary and Permanent Injunctions and Damages" against Defendants Benjamin Joon Tae Kim and Jullie Myung, Trustees of the Myung Family Trust, dated November 9, 2019.

On September 21, 2021, Kim and Myung, Trustees of the Myung Kim Family Trust, dated November 9, 2019 (the "Kim Trust")^[1] filed a cross-complaint against Grand View and Wells Fargo Bank, N.A. The cross-complaint alleges causes of action for (1) private nuisance, (2) quiet title, (3) trespass, (4) declaratory relief, and (5) negligence.

On June 13, 2025, Grand View filed a first amended complaint ("FAC") against Defendants the Kim Trust and Benjamin Joon Tae Kim (jointly, "Defendants"), alleging fourteen causes of action for (1) declaratory relief, enforcement of recorded easements and for damages resulting from interference with the rights thereof, (2) for establishment of a prescriptive easement, (3) for establishment/recognition of an implied easement, (4) for establishment/ recognition of easement by necessity, (5) for establishment/recognition of an equitable easement, (6) quiet title, (7) declaratory relief, or (8) breach of the implied covenant of good faith and fair dealing, (9) negligence, (10) trespass, (11) private nuisance, (12) intentional interference with contract, (13) intentional interference with prospective economic advantage, (14) negligent interference with prospective economic advantage.

On August 11, 2025, the Kim Trust demurred to the first eight causes of action in Grand View's FAC. Grand View opposed. The Kim Trust replied.

On January 9, 2026, the Court continued the hearing to March 6, 2026 and ordered the Kim Trust "to meet and confer with Grand View within 10 days." (Order 1/9/26, 3:5.) The Court further ordered that "[i]f the parties are unable to resolve the pleading issues or if the parties are otherwise unable to meet and confer in good faith, Kim Trust is to thereafter file and serve a declaration

setting forth the efforts to meet and confer ... within 15 days.” (Id. at 3:6-10.)

At the March 6, 2026 hearing, the Court took the demurrer off calendar because no declaration was filed, and pursuant to the Court’s January 9, 2026 Order, this meant the parties had resolved their issues. However, the Kim Trust filed an untimely declaration at 10:32 p.m. the night before the hearing, which the Court could not see in the docket before it took the demurrer off calendar. Additionally, it appears that at the hearing, the Kim Trust did not inform the Court that the issues in the demurrer had not been resolved, nor did the Kim Trust alert the Court to the filing.

The Kim Trust’s counsel’s untimely declaration attests that “[o]n March 4, 2026, I had a 10-minute telephone call with counsel for the plaintiff Grand View regarding the merits of the first amended complaint. Counsel informed me that he was going to file an errata notice with a quiet title verification form attached. Importantly, the Kim Trust maintains that the quiet title action remains deficient because the City of Los Angeles is an indispensable party under both CCP Sections 760.010(a) and 389 as set forth in the demurrer.” (Graham Decl., ¶ 2.) Counsel further stated that “[t]he parties otherwise remained firm in their respective legal positions.” (Graham Decl., ¶ 3.)

Also at the March 6, 2026 hearing, the Court ordered that “Plaintiff is to give notice.” (Minute Order 3/6/26, p. 2.) In Grand View’s notice, it stated that “the Court ruled as follows: ... In light of Defendants failure to comply with the Court’s prior order of January 9, 2026 concerning the Demurrer to the First Amended Complaint, the Court declines to hear it on its merits. The Court confirmed that Defendants had ten (10) days to file an Answer to the First Amended Complaint.” (Notice of Ruling 3/9/26, 2:2-7.)

The Kim Trust thereafter filed an objection to Plaintiff’s notice of ruling, asserting that the statement in the notice that the “Kim Trust had ten (10) days to file an answer ... is not true.” (Obj. to Notice of Ruling, 2:2-3.) The Kim Trust contends that “[t]he Court took the demurrer off calendar because a timely meet and confer declaration had not been filed per the Court’s minute order from the initial hearing on the demurrer. The Court did not have the authority to overrule the demurer [sic], as CCP Section 430.41(A)(4) reads, ‘A determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a

demurrer.' The Court took the matter off calendar because it realized that it could not overrule the demurrer. As the demurrer had not been overruled, the Court could not order or 'confirm' that the Kim Trust had 10 days to file an answer." (Obj. to Notice of Ruling, 2:3-11.) The Kim Trust further asserts that "[a]s with any motion, when the court takes a demurrer off calendar, there is no decision on the merits and therefore no bar to refiling. Accordingly, the Kim Trust has submitted for electronic filing a renewed demurrer to the first amended complaint." (Obj. to Notice of Ruling, 2:12-14.)

Subsequently, the Kim Trust filed a renewed demurrer to the FAC on March 9, 2026. Grand View filed an objection to the demurrer, as well as a separate request to strike the Kim Trust's renewed demurrer as "unauthorized and untimely." The Kim Trust replied to both.

Objection and Request to Strike the Kim Trust's Second Demurrer

As a preliminary matter, Grand View objects to the Kim Trust's renewed demurrer. Grand View provides key background information, contending that "Plaintiff filed its First Amended Complaint on June 13, 2025, over a year ago. After extensions of time to respond, Defendants response was due in August of 2025. Defendants did not timely respond. Instead, they waited till March of 2026 to file their Demurrer to the First Amended Complaint. As such, the Demurrer to the First Amended Complaint is untimely, ought not to be heard, and properly subject to a request to strike, here asserted." (Obj., 2:3-8.) Grand View further explains that "[a]t the March 2026 hearing, and in light of the failures to comply with its earlier order, the Court refused to consider the continued Demurrer. During the discussions at the hearing, Defendants were told to file an Answer to the First Amended Complaint and to do so within ten (10) days. At the hearing, Defendants' counsel expressly agreed to do so. Instead, Defendants filed a second Demurrer to the First [sic] Amended Complaint, apparently upon the grounds that they had reconsidered their agreement (and discovered that the subsequent minute order did not fully memorialize what had been said)." (Obj., 2:18-24.)

Grand View asserts the following: "First, the current demurrer was filed seven (7) months after the response was due, and is grossly untimely, and subject to being stricken on that ground alone. Second, one cannot file a demurrer, have the Court work it up, receive an order to comply with certain procedural requirements, ignore the order, have the Court refuse to consider the demurrer for violation of its order, and then ignore all

that and simply file a new demurrer to the same First Amended Complaint. Third, the Court ordered Defendants to file an answer within ten (10) days of the March 6, 2026 hearing, and Defendants' counsel expressly agreed to do so – and has acknowledged in writing doing so. Defendants cannot simply ignore the Court's order – and their own agreement before the Court – and perpetuate these challenges. The demurrer ought to be stricken and not considered, and Defendants ordered to either answer the First Amended Complaint, or have their default entered.” (Obj., 2:25-3:8.)

The Kim Trust takes issue with Grand View's assertion, contending that “none of the court's minute orders indicates that the demurrer was taken off calendar. ... The minute order dated January 9, 2026 does not indicate that the demurrer would be taken off calendar if a timely meet and confer declaration were not filed. Neither does the March 6, 2026 minute indicate that the demurrer was actually taken off calendar. The court merely informed the parties from the bench at the March 6, 2026 hearing that it had taken the demurrer off calendar.” (Reply to Obj., p. 2, ¶ 2.) The Kim Trust also quotes Code of Civil Procedure section 430.41, subdivision (a)(4), which states that “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” The Kim Trust uses this statute to assert that “[b]ecause the court did not (and could not) overrule the demurrer, the Kim Trust was not precluded from re-filing the same.” (Reply to Obj., pp. 2-3, ¶ 4.)

The Kim Trust contends that the Court's removal of its demurrer from the calendar is an invitation to file a new demurrer. However, the Court's lack of a ruling on the demurrer's merits does not invite the Kim Trust to file a subsequent demurrer. The Court removed the demurrer from the calendar because the Kim Trust's failure to file a timely declaration demonstrated to the Court that the parties resolved the issues during the meet and confer process. The Court's January 9, 2026 Order explicitly stated that “[i]f the parties are unable to resolve the pleading issues or if the parties are otherwise unable to meet and confer in good faith, Kim Trust is to thereafter file and serve a declaration.” (Order 1/9/26, 3:6-8 [emphasis added].) Accordingly, the Kim Trust's failure to file a timely declaration and failure to alert the Court that issues persisted meant the Court believed the issues were resolved. Now, the Kim Trust seeks to have the Court hear its renewed demurrer without explaining why it failed to follow the Court's orders, nor does the Kim Trust provide a legal basis for its assertion that a renewed demurrer is allowed. The Kim Trust's moving papers merely state that this “is a renewed demurrer because on March 6, 2026 the court took the Kim Trust's first demurrer off calendar

because a supplemental meet and confer declaration had not been timely filed.”
(Notice of Mot., 2:16-19.)

Code of Civil Procedure section 430.40,
subdivision (a), prescribes
that “[a] person against whom a complaint or cross-complaint has been filed
may, within 30 days after service of the complaint or cross-complaint, demur to
the complaint or cross-complaint.” Accordingly, demurrers must be filed within
thirty days of filing the pleading. When a party seeks to attack the pleadings
more than thirty days after its filing date, the proper avenue is filing a
motion for judgment on the pleadings, not a demurrer, because “[a] motion for
judgment on the pleadings may be made at any time either prior to the trial....” (Stoops v. Abbassi (2002) 100 Cal.App.4th
644, 650.) “A motion for judgment on
the pleadings performs the same function as a general demurrer.” (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th
995, 999,
citations omitted.)

Accordingly, the Court declines to hear the Kim Trust’s renewed
demurrer for its failure to follow proper procedure.

Conclusion

Based on the foregoing, the Court declines to hear the Kim
Trust’s demurrer for being untimely and improper. The Kim Trust is ordered to
file its answer to the first amended complaint within ten days of the date of
this Order.

The Kim Trust is ordered to give notice of this Order.

DATED: August 3, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court

[1][1] In the cross-complaint, Cross-Complainants indicate
that the complaint erroneously sues the Myung Family Trust dated November 9,

2019, not the Myung Kim Family Trust dated November 9, 2019.